

1.

CASE #	CASE NAME	HEARING NAME
CVPS2405394	SANCHEZ vs FORD MOTOR COMPANY	MOTION TERMINATING SANCTIONS OR ALTERNATIVELY ISSUE SANCTIONS AGAINST PLAINTIFF

Tentative Ruling:

Moving party: Defendant Ford Motor Company

Responding party: Plaintiff Zorina Sanchez

Plaintiff Zorina Sanchez brings this Song-Beverly action regarding a 2019 Certified Pre-Owned Ford Escape that contained engine and transmission defects. The complaint, filed 8/30/24, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; and (5) negligent repair. Trial is set for 9/18/26.

Defendant moves for terminating sanctions, or in the alternative, issue and evidentiary sanctions, for Plaintiff's failure to comply with the court's order to appear at deposition for 4/30/26. Defendant attempted to depose Plaintiff for over a year, until the court granted Defendant's motion to compel deposition. Defendant also requests \$1,500 in monetary sanctions.

Plaintiff concedes that while she did not appear at deposition on 4/30/26, she did appear for deposition on 5/11/26, rendering the motion moot. There was no willful failure to appear, as counsel apologized for the non-appearance and offered alternative dates. There is no established history of abuse to justify terminating sanctions, and issue or evidentiary sanctions are the equivalent of terminating sanctions. She contends that monetary sanctions should be denied or reduced.

In reply, Defendant contends that Plaintiff did not offer the 5/11/26 date until 5/1/26 and failed to provide an explanation for the failure to appear. It argues that the non-compliance was willful and the history of not appearing for deposition supports terminating sanction. It argues it has been prejudiced by the delay in the deposition.

Analysis

If anyone engages in conduct that is a misuse of the discovery process, the court may impose monetary sanction, issue sanction, evidence sanction, terminating sanction, and contempt sanction. (Code Civ. Proc., § 2023.030.) The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks, but the court may not impose sanctions which are designed not to accomplish the objects of discovery but to impose punishment. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487.) In exercising the court's discretion, the court may look at the following factors: (1) the time since the discovery was served; (2) whether the responding party was given an extension of time; (3) the number of discovery propounded; (4) whether the unanswered

discovery sought information that was difficult to obtain; (5) whether the answers supplied were evasive and incomplete; (6) the number of unanswered questions remaining; (7) whether the unanswered questions are material to the claim or defense; (8) whether the responding party has acted in good faith and reasonable diligence; (9) the existence of prior orders compelling discovery and the answering party's response; (10) whether the party was unable to comply with the prior orders; (11) whether an order allowing more time to answer would enable the answering party to supply the necessary information; (12) whether a sanction short of dismissal or default would be appropriate. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 796-797.) A prerequisite to the imposition of the dismissal sanction is that the party has willfully failed to comply with a court order. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 487.) Terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order, and it appears a less severe sanction would not be effective. (*Link v. Cater* (1998) 60 Cal.App.4th 1315, 1326.)

Discovery sanctions are issued to remedy discovery abuse, not to punish the offending party. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) The sanctions should be proportionate to the offending party's misconduct. (*Id.*) "[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanctions." (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

Here, the discovery at issue, Plaintiff's deposition, has taken place. Accordingly, terminating, issue and evidentiary sanctions are inappropriate at this time. However, monetary sanctions are appropriate. Plaintiff fails to provide any reason for why she failed to appear at deposition. Defendant fails to provide a breakdown of the hourly rate and hours spent on the motion. **The court awards a lesser amount of \$1,110 (\$350 x 3.0 hours + \$60 filing fee).**

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400337	ROUSHANZAMIR vs SCHWICHTENSE	MOTION FOR AND ORDER STAYING EXECUTION AND ENFORCEMENT OF THE JUDGMENT ENTERED

Tentative Ruling:

Moving party: Plaintiff Ali Roushanzamir
Responding party: Defendants Deanna Mae Hopkins, Derek Hardister, and Cammy Hardister

Ali Roushanzamir ("Plaintiff") alleges that Anglin Mae Hopkins, Deanna M. Hopkins, Hopkins D.M. Living Trust, Living Trust Hopkins-Anglin Family Trust, Living Trust Hopkins-Anglin TBD Trust (collectively "Hopkins Defendants"), are the owners of 7011 El Cerrito Road. Plaintiff alleges that Hopkins Defendants have abandoned the property and have acted in a way that obstructs Plaintiff's ingress/egress to do